

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
August 27, 2026
8:30 AM/1:30 PM

2. KAYLA BURGESS V. KYLE BURGESS

23FL0919

On December 26, 2025, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders. The parties were referred to Child Custody Recommending Counseling (CCRC) however Respondent failed to appear at the CCRC appointment. The matter came before the court for hearing on March 26, 2026, at which time the parties were re-referred to CCRC with an appointment on April 23, 2026, and a review hearing was set for June 18, 2026. Only Respondent appeared at the re-set CCRC appointment. When the parties appeared for the June 18th hearing, the court once again referred them to CCRC and once again set a review hearing.

Petitioner is requesting sole legal and sole physical custody of the minors. Respondent opposes the request and instead asks for sole physical custody of the minors to be awarded to him and the parties to jointly share legal custody.

The parties attended CCRC on July 23, 2026, and were able to reach some agreements. A report containing those agreements and additional recommendations was prepared on August 3, 2026. It was mailed to the parties on August 4th.

After reviewing the agreements and recommendations contained in the CCRC report the court finds them to be in the best interests of the children and they are hereby adopted as the orders of the court.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #2: AFTER REVIEWING THE AGREEMENTS AND RECOMMENDATIONS CONTAINED IN THE CCRC REPORT THE COURT FINDS THEM TO BE IN THE BEST INTERESTS OF THE CHILDREN AND THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE

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TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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3. BRIAN CAMBRIDGE V. JORDAN FIERRO

25FL0981

On August 10, 2026, Respondent filed a Request for Order (RFO) seeking custody and visitation orders and an Order Shortening Time (OST) to be heard. All required documents were served on August 11th.

Petitioner has not filed a Responsive Declaration to Request for Order. Where a party fails to timely file opposition papers the court, in its discretion, may treat said failure “as an admission that the motion or other application is meritorious.” El Dorado County, Local Rule 7.10.02(C). Here, the RFO was timely and properly served on Petitioner. He had notice of the pending requests and chose not to file an opposition to the RFO. As such, the court finds good cause to treat his failure to do so as an admission that the claims made in the RFO are meritorious.

Respondent is requesting temporary sole legal and sole physical custody of the minor with non-professionally supervised visits to Petitioner twice per week for two hours per visit. She asks that her mother, or one of her other family members, act as the supervisor for the visits. Alternatively, she asks that Petitioner pay for up to 4 hours per week of professionally supervised visits if he will not agree to her family providing supervision.

After reviewing the filings as outlined above the court finds Respondent’s requests to be in the best interests of the minor. Respondent shall have temporary sole legal and physical custody of the minor. Petitioner is to have non-professionally supervised visits with the minor twice per week for up to two hours per week. The parties are to agree on a member of Respondent’s family to act as the non-professional supervisor. The non-professional supervisor shall complete and file an FL-324(NP) prior to supervising visits. If the parties are unable to agree upon a non-professional supervisor, then visits are to be professionally supervised. Petitioner is to pay the sole cost of professional supervision.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court’s adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #3: THE COURT FINDS RESPONDENT’S REQUESTS TO BE IN THE BEST INTERESTS OF THE MINOR. RESPONDENT SHALL HAVE TEMPORARY SOLE LEGAL AND PHYSICAL CUSTODY OF THE MINOR. PETITIONER IS TO HAVE NON-PROFESSIONALLY SUPERVISED VISITS WITH THE MINOR TWICE PER WEEK FOR UP TO TWO HOURS PER WEEK. THE PARTIES ARE TO AGREE ON A MEMBER OF